



File No.: PD/00245/2022

RESOLUTION No.: R/00137/2023

In view of the judgment issued by the National Court, Administrative Litigation Chamber, Section One, in Administrative Litigation Appeal number XXXX/XXXX, which challenges the Resolution of the Spanish Agency for Data Protection dated April 10, 2019, that inadmissibly rejected the complaint with reference number: ***REFERENCIA.1 filed by Ms. A.A.A. on behalf of Mr. B.B.B. against GOOGLE LLC.

Said judgment annuls that resolution for being contrary to law and orders that this Agency proceed to admit the complaint filed by Ms. A.A.A. on behalf of Mr. B.B.B.

After carrying out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: On March 12, 2019, Ms. A.A.A., on behalf of Mr. B.B.B. (hereinafter, the complainant), exercised the right to erasure concerning 29 URLs that she transcribes in her complaint, against GOOGLE LLC with NIF 770493581 (hereinafter, the respondent), and her request, as stated by the complainant, did not receive the legally established response.

The complainant points out that the links provide access to articles that discuss alleged criminal activities, which are neither true nor have been subject to prosecution.

The contents of these articles are false and seriously infringe upon honor by imputing the commission of very serious criminal acts that are not only uncertain.

The complainant's request refers to the removal, from the search results page, of the following URLs:

1. ***URL.1
2. ***URL.2
3. ***URL.3
4. ***URL.4
5. ***URL.5
6. ***URL.6
7. ***URL.7
8. ***URL.8
9. ***URL.9
10. ***URL.10
11. ***URL.11
12. ***URL.12
13. ***URL.13
14. ***URL.14
15. ***URL.15
16. ***URL.16
17. ***URL.17
18. ***URL.18
19. ***URL.19
20. ***URL.20
21. ***URL.21
22. ***URL.22
23. ***URL.23
24. ***URL.24
25. ***URL.25
26. ***URL.26
27. ***URL.27
28. ***URL.28
29. ***URL.29

The complainant provides various documentation related to the complaint filed with this Agency and regarding the exercise of the right exercised.

SECOND: After examining the complaint, it is subject to transfer to the respondent, so that, within a period of fifteen working days, it may formulate any allegations it deems appropriate:

In this regard, the respondent indicates that a response was given to the complainant via email on April 11, 2019, denying, with justification, regarding twenty of the disputed URLs, and it was communicated that the remaining 9 did not appear in the results list after conducting a search based on the name of the interested party.

The request of the interested party has been re-examined, and concerning twenty-four of the URLs subject to their complaint, it has been verified that, as of today, they do not appear among the results provided by the search engine when conducting a search based on the name of the interested party. The interested party has also not demonstrated that either these or any of the disputed search results appear when consulting their name, as was their burden.

Regarding the five remaining URLs subject to the interested party's complaint, the content of the web pages to which the disputed search results refer has been re-examined, and the initial decision has been reconsidered. Consequently, the requested blocking by the complainant has been carried out.

THIRD: After examining the allegations presented by the respondent, they are subject to transfer to the complainant, so that, within a period of fifteen working days, it may formulate any allegations it deems appropriate:

The complainant points out that it is not true that the respondent has blocked the URLs, as, at the date of submission of the allegations, the following URLs remain active: 3, 11, 12, 15, 16, 17, 18, 20, 21, 24, 25, and 29.

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All these links provide access to articles discussing alleged criminal activities of the claimant, which are neither true nor have been subject to prosecution and judgment.

Furthermore, there is reference to the existence of an Interpol Order for their search and detention, which has been canceled. Additionally, as already stated in the initial request submitted to this Agency, all of these are news articles that are 9 or 10 years old, and therefore lack any journalistic interest. The contents of these articles are false and seriously harm the honor of the claimant by imputing the commission of very serious criminal acts that are not only untrue but are also causing significant moral and economic harm due to the impact on their professional image.

The respondent has not taken the measures it claims to have undertaken, nor have the rights and guarantees of the affected party been restored.

LEGAL GROUNDS

FIRST: The Director of the Spanish Agency for Data Protection is competent to resolve this matter, in accordance with the provisions of section 2 of Article 56 in relation to section 1 f) of Article 57, both of the Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data (hereinafter, GDPR); and in Article 47 of the LOPDGDD.

SECOND: In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing claims submitted by a data subject and investigating the reasons for such claims.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have designated a data protection officer, Article 39 of the GDPR assigns this officer the

function of cooperating with that authority.

It is not deemed appropriate to pursue administrative liability within the framework of a sanctioning procedure, whose exceptional nature implies that, whenever possible, preference should be given to alternative mechanisms that are supported by current regulations.

It is the exclusive competence of this Agency to assess whether there are administrative liabilities that should be addressed in a sanctioning procedure and, consequently, the decision regarding its initiation, with no obligation to initiate a procedure based on any request made by a third party. Such a decision must be based on the existence of elements that justify the initiation of sanctioning activity, circumstances that do not occur in the present case, considering that

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with this procedure, the guarantees and rights of the claimant are duly restored.

THIRD: The rights of individuals regarding the protection of personal data are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability are contemplated. The formal aspects related to the exercise of these rights are established in Article 12 of the GDPR and Article 12 of the LOPDGDD. Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and to state its reasons in case it does not intend to comply with such request. The burden of proof regarding compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the data controller.

The communication addressed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

FOURTH: The right to be forgotten is contemplated in Article 17 of the GDPR, as well as in Article 93 of the LOPDGDD, concerning the right to be forgotten in Internet searches, which states, in its paragraph 1, the following:

“1. Everyone has the right for search engines on the Internet to remove from the lists of results obtained from a search conducted based on their name the published links that contained information relating to that person when they are inadequate, inaccurate, irrelevant, outdated, or excessive, or have become such due to the passage of time, taking into account the purposes for which they were collected or processed, the time elapsed, and the nature and public interest of the information. Similarly, action must be taken when the personal circumstances invoked by the affected party demonstrate the prevalence of their rights over the maintenance of the links by the Internet search service.

This right shall persist even when the retention of the information published on the website to which the link directed is lawful and it has not been deleted prior to or simultaneously with the request.”

As stated in the Judgment of the Supreme Court of January 11, 2019, “This fundamental right to be forgotten is not an unlimited right - constitutional doctrine holds - because, although the Constitution does not expressly establish limits...

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Specific limits, based on the principle of unity of the Constitution, are applicable due to the respect for other fundamental rights, among which the freedom of information proclaimed by Article 20 of the

Constitution is of particular relevance.

Regarding the nature of the search engine as a data controller, it should be noted that a search engine is a tool that facilitates internet users' access to certain web pages. To do this, the tool accesses a list of previously indexed links and provides the user with a list of web addresses that refer to pages containing the words selected by the user.

The Judgment of the Court of Justice of the European Union dated May 13, 2014, states the following: Paragraph 28: "By exploring the Internet in an automated, constant, and systematic manner in search of the information published there, the operator of a search engine collects such data, which it extracts, records, and subsequently organizes within the framework of its indexing programs, stores on its servers, and, where appropriate, communicates and facilitates access to its users in the form of search result lists. Since these operations are explicitly and unconditionally covered by Article 2, letter b), of Directive 95/46, they must be classified as processing in the sense of that provision, regardless of whether the search engine operator also performs the same operations with other types of information and does not distinguish between these and personal data."

Paragraph 33: "However, the search engine operator is the one who determines the purposes and means of this activity and, thus, of the processing of personal data that it carries out in this context, and therefore must be considered responsible for such processing under the aforementioned Article 2, letter d)."

Paragraph 35: "In this regard, it is important to highlight that the processing of personal data carried out within the framework of a search engine's activity is distinct from that carried out by website publishers, which consists of displaying such data on a webpage, and is added to it."

Consequently, the Court of Justice considers that the search engine operator is responsible for the processing of data by determining the purposes and means of its activity.

Regarding the possibility of exercising the right to erasure before the internet search engine without resorting to the website operator, the Court of Justice of the European Union, in its Judgment of May 13, 2014 (Case C-131/12), has stated:

"(...) data processing (...) carried out by the search engine operator can significantly affect the fundamental rights to respect for private life and the protection of personal data when the search conducted using that search engine is based on the name of a natural person, since such processing allows any internet user to obtain, through the list of results, a structured view of the information relating to this person that may be found on the Internet, which potentially affects a multitude of..."

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aspects of their private life, which, without this engine, would not have been interconnected or could only have been interconnected with great difficulty, and which thus allows them to establish a more or less detailed profile of the person in question. Furthermore, the effect of the interference with the rights of the interested party is multiplied due to the significant role that the Internet and search engines play in modern society, which confer a ubiquitous character to the information contained in such a list of results (see, in this regard, the judgment eDate Advertising and others, C-509/09 and C-161/10, EU:C2011:685, paragraph 45).

"The Court of Justice maintains that the removal of links from the list of results based on the name of the individual affected by the dissemination of the news could have repercussions on the legitimate interest of internet users potentially interested in accessing the information in question, so it is necessary to seek a fair balance between this interest and the fundamental right of the affected person in accordance with Articles 7 and 8 of the Charter of Fundamental Rights of the European Union."

"(...) to respect the rights established by these provisions, provided that the requirements set forth therein are genuinely met, the operator of a search engine is obliged to remove from the list of results obtained from a search carried out based on the name of a person links to web pages published by third parties that contain information relating to this person, even in the case that this name or this information is not removed prior to or simultaneously from these web pages, and, where applicable,

even if the publication on such pages is lawful in itself.”

Consequently, the processing of personal data carried out by the search engine operator allows a “name” to yield a list of results that provide information about a person that may affect their private sphere. Once the interested party has submitted their request for the deletion of their personal data to the search engine, it must examine it and proceed, if applicable, to delete the specific links from the list of results, without the need to first or simultaneously approach the website operator.

It also follows from the above that the conflicting rights and interests must be weighed in each specific case in order to determine which right prevails.

For the purpose of carrying out the weighing task, it should be recalled the Judgment of the Supreme Court, number 545/2015, of October 15, 2015, which states that “the so-called ‘right to digital oblivion’, which is a specification in this field of the rights derived from the quality requirements for the processing of personal data, does not protect the idea that each individual can construct a past to their liking, forcing web page editors or search engine operators to delete the processing of their personal data when associated with facts that are not considered positive. It also does not justify that those who publicly expose themselves can demand that a curriculum be constructed to their liking, controlling the discourse about themselves, eliminating negative information from the Internet, ‘positioning’ the results of Internet searches at their whim, so that the most favorable...”

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occupy the top positions. If this thesis were accepted, it would severely disrupt the information mechanisms necessary for citizens to make their decisions in the democratic life of a country.”

It is also relevant the doctrine collected in the ruling of the National Court, dated June 21, 2019, which specifies, in its fifth legal foundation, the following, in relation to the information related to the professional life of the interested party:

“(...) General doctrine that is also developed in sections 81, 93, and 97 of the repeated Judgment of the CJEU - of May 13, 2014 - indicating that, notwithstanding that prevalence, a fair balance must be sought between the legitimate interest of internet users in having access to information in a search concerning the name of a person and the fundamental rights of that person, and it may result that, for specific reasons such as the role played by the aforementioned interested party in public life, the interference with their fundamental rights is justified by the preponderant interest of the public in having, as a result of this inclusion, access to the information in question.

In the case at hand, entering into the weighing of the rights and interests at stake, it must be taken into account first of all that it refers to the professional life of the claimant, a businessman, and not to personal life, as this is very relevant for modulating the intensity that the protection of the right regulated in Article 18.4 of the Constitution should deserve, as this Chamber has pointed out in the Judgments of May 11, 2017 - appeal no. 30/2016 - and June 6, 2017 - appeal no. 1.797/2015.”

In this regard, it is appropriate to refer to the guidelines of the Working Group of 29 on the right to be forgotten (Guidelines on the implementation of the Court of Justice of the European Union Judgment on “Google Spain and inc v. AEPD and Mario Costeja” C-131/12), which states: “There is a basic difference between a person's private life and their public or professional life. The availability of information in search results becomes more acceptable the less information it reveals about a person's private life (...) it is more likely that the information will be relevant if it is related to the professional life of the interested party, but it will depend on the nature of the interested party's work and the legitimate interest of the public in having access to that information through a search by their name (...)”.

When the information refers to private individuals, the Constitutional Court has declared that “even when the news concerning the subject matter relates to public interest, not all its content is protected by the freedom of information - in this case, freedom of expression - but it may be deemed disproportionate to transmit those facts that, within the news, affect the honor or intimacy of the concerned person and that are revealed as ‘manifestly unnecessary and irrelevant to the public interest of the information’ (STC 105/1990, of June 6, FJ 8, and 121/2002, of May 20, FJ 5).

Furthermore, in order to assess the public relevance of the matter, it must be analyzed whether the published information remains of general interest due to the time elapsed. On this issue, the National Court has declared, in its ruling dated November 8, 2017, the following: “moreover, unlike the first link, it has not...

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an excessive amount of time has passed between the date the cancellation request was made to the search engine and the date of the news publication. Indeed, from the date the news was published (August 2011) to the date the right of cancellation was exercised (July 2015), not even four years have passed, and the fact that it is an archive, given the circumstances of the case and as previously stated, does not affect this conclusion.”

In this regard, the aforementioned Judgment of the Court of Justice of the European Union states in paragraph 93 the following: “even an initially lawful processing of accurate data may become, over time, incompatible with that Directive when these data are no longer necessary in relation to the purposes for which they were collected or processed. This is particularly the case when they are inadequate, irrelevant, or no longer relevant, or excessive in relation to these purposes and the time elapsed.”

Regarding the criterion of “the public relevance of the disseminated information,” the Judgment of the Constitutional Court 89/2022, of June 29, 2022, establishes in Legal Basis 5, section A), that “(...) It should be noted that the concept of ‘matters of public relevance’ is a concept that this court has been considering as a prerequisite to assess the preponderant value of the public freedoms of information and expression of art. 20 CE, against the right to honor and personal and family privacy of art. 18.1 CE (among others, SSTC 49/2001, of February 26, FJ 6, and 216/2013, of December 29, FJ 5). This criterion is also used, as indicated by the appellant, in the STC 58/2018, where we spoke of the ‘right to freely communicate truthful information [art. 20.1 d) CE], which protects the dissemination of facts that deserve to be considered newsworthy as they relate to matters of public relevance that are of general interest due to the subjects they refer to, or the individuals involved’ (FJ 6).

(...)

To determine whether there exists such a superior public interest, it is appropriate to analogously apply the criteria already developed in our jurisprudence, in which we have determined that the existence of such interest may arise because the affected party is a public person or has acquired public notoriety, and in this second case, public notoriety may have been achieved through the professional activity they engage in, or by habitually disseminating facts and events from their private life, or they may have gained circumstantial prominence by being involved in events that enjoy that public relevance (SSTC 99/2002, May 6, FJ 7, and 23/2010, April 27, FJ 5). It is also possible that even if the affected party is not a public person nor has acquired public notoriety, there may exist a public interest in accessing such information as it refers to a matter of general interest (STC 216/2013, December 19, FJ 6):

(...)

b) (...) Once the public condition of the appellant is ruled out, it must be determined whether there is an interest in accessing the information based on the subject matter in question. The fact that the information relates to the current professional life of the interested party is an element to consider, as highlighted by Google in its allegations, and as stated in the guidelines on the execution of the STJUE Google Spain, from the Article 29 Data Protection Working Group, which establishes that “the information...

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The relevance of the information is more likely to be significant if it relates to the current professional

life of the interested party." However, this fact is not determinative because, as those same guidelines indicate, "it will largely depend on the nature of the work itself and the public's interest in accessing that information through a search by name" (commentary on criterion 5, page 17).

It is necessary to determine, first and foremost, whether access to the published information contributes to the formation of a free public opinion (STC 49/2001, of February 26, FJ 6), because what deserves special constitutional protection is the dissemination of ideas that contribute to that end and facilitate the citizen's ability to freely form their opinions and reasonably participate in public affairs (STC 23/2010, of April 27, FJ 3). If such an interest exists, in any case, it would only extend to that communication whose knowledge is necessary for the real participation of citizens in collective life and that is not formally degrading (STC 110/2000, of May 5, FJ 8).

(...)

(iii) Finally, it should be noted that the application of the criterion of public relevance must be more restrictive when it comes to access through a link in a search engine, insofar as, even if the link obtained after a search for the name and surname of that person is removed, access can always be made through the website where the original information is published, or even through the search engine using search criteria other than the name and surname of the affected person.

In this regard, the Court of Justice of the European Union has already noted that "the result of the balancing of conflicting interests that must be carried out [...] may differ depending on whether it concerns processing carried out by a search engine manager or by the publisher of this webpage, given that, on the one hand, the legitimate interests justifying these processes may be different, and, on the other hand, the consequences of these processes on the interested party, and, in particular, on their private life, are not necessarily the same."

"In effect, to the extent that the inclusion, in the list of results obtained from a search carried out based on a person's name, of a webpage and the information contained therein relating to this person significantly facilitates the accessibility of that information to any internet user conducting a search about the interested party and may play a decisive role in the dissemination of this information, it may constitute a greater interference in the fundamental right to respect for the private life of the interested party than the publication by the publisher of this webpage" (CJEU Google Spain, § 86 and 87) (...).

Finally, the aforementioned STC states regarding the time factor, in its foundation 5, section B), that "(...) Although such news about that criminal proceeding may be current, and, consequently, may justify a greater public interest in accessing it, the current nature does not extend to the opinions expressed about the appellant on complaint portals that do not concern those criminal proceedings. (...)"

FIFTH: In the present case, once the documentation presented by the parties has been examined, it is observed that the claiming party exercised the right to be forgotten and requested

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that the 29 URLs, already referenced, be removed from the search engine due to obsolete and false publications.

The respondent has duly denied the request regarding twenty of the disputed URLs, and it was communicated that the remaining 9 did not appear in the results list after conducting a search using the name of the interested party.

During the processing of this procedure, the respondent has proceeded to block the questioned URLs that appeared in the results list of the search engine when entering the name of the claimant; however, this party states that they still appear in the results list when entering the name and surnames in URLs 3, 11, 12, 15, 16, 17, 18, 20, 21, 24, 25, and 29.

On the other hand, this Agency has verified that when entering the name and surnames of the claimant in the search engine, the questioned URLs do not appear in the results list. Conversely, when entering the questioned URLs, information and data about the claimant do appear in 8, 11, and 12; however, these URLs do not appear in the results list when entering the name of the claimant in the search

engine.

That said, it should be noted that this Agency has verified that the claimant's data is not accessible through the search engine when conducting searches by the affected person's name on the web addresses regarding which the suppression is exercised, and it cannot be accepted that by entering a specific URL, one can access the information, given that the searches that internet users may carry out start from the name and surnames, and not by entering a specific URL that only the affected party may know due to being indexed before initiating the claim.

Based on the above, considering that the purpose of this procedure is to ensure that the guarantees and rights of the affected parties are duly restored, and given that the respondent has proceeded to de-index the questioned URLs during the processing of this procedure, consequently, with the new measures adopted by the respondent, it is appropriate to formally uphold the present claim, without the need for additional actions.

In light of the cited provisions and other generally applicable regulations,
the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD for formal reasons, the claim made by Ms. A.A.A. on behalf of Mr. B.B.B., against the entity GOOGLE LLC. However, the issuance of a new certification by said entity is not warranted, as the questioned URLs have been de-indexed during the processing of this procedure.

SECOND: TO NOTIFY this resolution to Ms. A.A.A. on behalf of Mr. B.B.B. and to GOOGLE LLC.

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In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

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